

Buchanan vs. Warley

In 1915, Buchanan, a white person, sold a house to Warley, a Black person, in Louisville, Kentucky. Louisville had an ordinance at that time that prohibited Black people from living on a block where the majority of the residents were white. Because most of the houses were occupied by white people, Warley was not allowed to live on the block. Buchanan sued to complete the sale. Warley cited the city ordinance as the reason for not completing the sale.

Buchanan alleged that the ordinance violated the Due Process clause of the 14th Amendment. The Kentucky Court of Appeals upheld the statute barring Black people from owning there. In a unanimous decision, the U.S. Supreme Court reversed the Kentucky Court of Appeals, ruling that the ordinance was unconstitutional. The Supreme Court cited the Civil Rights Act of 1866 and the 14th Amendment in stating that they assured "to the colored race the enjoyment of all of the civil rights ... enjoyed by white persons."